

Court No. - 38

Case :- WRIT - C No. - 6446 of 2019

Petitioner :- Ishtiyak Ahmed

Respondent :- Pashimanchal Vidyut Vitran Nigam Ltd

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- Ajay Kumar

Hon'ble Abhinava Upadhya,J.

Hon'ble Jayant Banerji,J.

On the request made on behalf of Sri Ajay Kumar, learned counsel for the respondent, put up this case tomorrow as fresh.

Order Date :- 25.2.2019

VPC

(Jayant Banerji,J) (Abhinava Upadhya,J)

Court No. - 34

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Petitioner :- Ishtiyak Ahmed

Respondent :- Pashimanchal Vidyut Vitran Nigam Ltd

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- Ajay Kumar

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajendra Kumar-IV,J.

1. Heard Sri Satyam Narayan, learned counsel for petitioner, Sri Ajay Kumar, learned counsel for respondent and perused the material available on record.
2. After some argument, learned counsel for petitioner did not dispute that petitioner has statutory alternative remedy of raising his grievance in respect of payment of electricity dues before Consumer Grievance Redressal Forum under para 7.10(i) of Electricity Supply Code, 2005 (hereinafter referred to as "Code") read with UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003 (hereinafter referred to as "Regulations, 2003") and thereafter, remedy is provided before Ombudsman under para 7.10(iv) of the Code read with Regulations, 2003.
3. We may also place on record that counsel appearing for Respondent-Electricity Department, when questioned, was not able to assist the Court at all and he was not aware of the relevant provisions under which consumer may avail statutory remedy.
4. Counsel for petitioner stated that he may be permitted to avail the aforesaid statutory remedies.
5. In view thereof, this writ petition is dismissed on the ground of alternative remedy.

Order Date :- 28.2.2019

Siddhant Sahu